

STUDENT DISCIPLINARY SANCTIONS

The Loudoun County School Board believes that fair, consistent, and equitable student discipline practices contribute to a high-quality educational experience. Such practices help students develop the skills to manage their emotions, exercise self discipline, and make responsible choices. Accordingly, the student disciplinary sanctions set forth herein are intended to correct student misconduct while maintaining safe, welcoming, and productive learning environments for all members of the school community.

To the extent practicable, Loudoun County Public Schools (LCPS) administrators are expected to apply student disciplinary sanctions that are progressive in nature and encourage accountability, positive behavior, and the prevention of future misconduct. In conjunction with sanctions, LCPS administrators also should implement supportive and restorative interventions that address the underlying causes of misconduct and promote student growth.

A. In-School Sanctions. In accordance with Policy 8215, In-School Disciplinary Measures, and with sufficient cause, a principal or assistant principal may impose one or more in-school sanctions which include, but are not limited to, detention, loss of school privileges for a period of time, and in-school restriction.

B. Short-Term Suspension. In accordance with the procedures set forth in Regulation 8220.1, Implementing Student Disciplinary Sanctions, and with sufficient cause, a principal, assistant principal, Superintendent or Superintendent's designee may determine that a student is not permitted to attend school for up to ten school days. In accordance with Virginia Code § 22.1-277, no student shall be suspended from school solely for an instance of truancy or for a violation related to the student's possession or use of a student cell phone and/or personal smart device, as defined in Virginia Code § 22.1-79.3:1.

C. Long-Term Suspension. In accordance with the procedures set forth in Regulation 8220.1 and with sufficient cause, the Superintendent or Superintendent's designee may determine that a student is not permitted to attend school for 11 to 45 school days.

1. Extended Long-Term Suspension. In accordance with the procedures set forth in Regulation 8220.1 and with sufficient cause, the Superintendent or Superintendent's designee may determine that a student is not permitted to attend school for 46 to 364 school days if:
 - a. The offense involved serious bodily injury;
 - b. The offense was weapon- or drug-related and described in Virginia Code §§ 22.1-277.07 or 22.1-277.08; or
 - c. The Superintendent or Superintendent's designee finds aggravating

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circumstances, in the Virginia Department of Education (VDOE) Superintendent's Memo #291-18, are defined to mean that:

- (i) The student engaged in misconduct which caused serious harm (including but not limited to physical, emotional, and psychological harm) to another person(s);
- (ii) The student engaged in misconduct which posed a credible threat of serious harm to another person(s), as determined by a threat assessment;
- (iii) The student's presence in the school poses an ongoing and unreasonable risk to the safety of the school, its students, staff or others in the school; or
- (iv) The student committed a serious offense that was persistent¹, and unresponsive to targeted interventions as documented through an established intervention process.

D. Reassignment. The Superintendent or Superintendent's designee may remove a student from the school or program the student attends and assign the student to a different LCPS school or program, including an alternative education program, if the student:

1. Has been charged² with an offense relating to the Commonwealth's laws on weapons, alcohol or drugs, or intentional injury to another person, or with an offense that is required to be disclosed to the Superintendent pursuant to subsection G of § 16.1-260³;

2. Has been found guilty or not innocent of an offense relating to the Commonwealth's laws on weapons, alcohol or drugs, or of a crime that resulted in or could have resulted in injury to others, or of an offense that is required to be disclosed to the Superintendent pursuant to subsection G of § 16.1-260⁴;

¹ Persistent misconduct is demonstrated when similar behaviors are documented in the student's disciplinary record.

² The term "charged" means that a petition or warrant has been filed or is pending against a student.

³ The student may be required to attend an alternative education program regardless of where the alleged crime occurred.

⁴ The student may be required to attend an alternative education program regardless of where the crime occurred.

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3. Has committed a serious offense or repeated offenses in violation of school board policies; or

4. Has been reassigned to an alternative education program by another school division. In such case, any reassignment will be done in accordance with Policy 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program.

E. Exclusion. In accordance with Policy 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program, the Superintendent or Superintendent's designee may deny a student's admission or readmission to LCPS.

F. Expulsion. In accordance with the procedures set forth in Regulation 8220.2, Expulsion by School Board, and for sufficient cause, the School Board or a three-member Committee thereof may determine that a student is not permitted to attend a school within LCPS and is ineligible for readmission to LCPS for 365 calendar days after the date of the expulsion.

G. Suspension or Expulsion of a Student in Pre-Kindergarten through Grade Three. No student in preschool through grade three shall be suspended for more than three school days or expelled from attendance at school unless:

1. The offense was weapon- or drug-related and described in Virginia Code §§ 22.1-277.07 or 22.1-277.08;

2. The offense involves physical harm or a credible threat or physical harm to others; or

3. The superintendent or Superintendent's designee finds aggravating circumstances as defined above in Subsection C.1.c.

H. Suspension or Expulsion of a Student Charged with, or Convicted of, a Community-Based Crime.

1. In accordance with the procedures set forth in Regulation 8220.1, a principal may suspend, in conjunction with a recommendation for reassignment, any student who has been charged with an offense included in subsection G of § 16.1-260 that involves the intentional injury of another student in the same school.

2. In accordance with the procedures set forth in Regulation 8220.1, a principal may suspend and the Superintendent or Superintendent's designee may reassign, long-term suspend, and/or recommend the expulsion of any student who has been adjudicated delinquent or convicted of an offense listed in subsection G of Virginia Code § 16.1-260.

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I. Graded Work. A student who has been suspended from school for any period of time will be permitted to access and complete graded work during and after the suspension from school.

J. Disciplinary Consequences Related to Student Activities. In accordance with Policy 8350, Student Activities, disciplinary consequences in addition to those authorized herein may be imposed upon a student who participates in interscholastic, co-curricular or extra-curricular activities or events.

K. Interventions. In conjunction with any sanction imposed on a student, an LCPS administrator should also impose one or more interventions that address the underlying causes of misconduct, repair harm, and/or rebuild relationships. Such interventions include, but are not limited to, conferences, re-teaching, written reflections, restorative practices, behavior and support plans, schedule changes, assignment to an LCPS Substance Use Education class, and referrals to community-based services.

1. The costs of any community-based educational, alternative education, or intervention program that is not a part of the educational program offered by LCPS that the student may attend during any suspension is borne by the student's parent or guardian.

L. Students with Disabilities. The imposition of any discipline sanction upon a student with an Individual Education Program (IEP) or Section 504 Plan shall be done in accordance with Regulation 8220.3, Disciplinary Procedures for Students with Disabilities. Further, when a suspension and/or expulsion is being contemplated, a student's IEP Plan, Section 504 Plan, and/ or Behavior Intervention Plan shall be reviewed to ensure all accommodations and necessary support services are in place and being implemented with fidelity; if necessary, the student's IEP team, Section 504 team, or other team shall convene to make any necessary changes to those plans. Nothing herein proscribes the rights of students with disabilities to receive educational services from LCPS under applicable federal and state regulations pertaining to the education of students with disabilities.

[Former Policies 8-27, 8-28, 8-40]

Adopted: 09/24/19

Revised: 09/13/2022

Current Revision: 01/28/2026

Legal Refs: Virginia Code §§ [16.1-260](#), [16.1-305.1](#), [22.1-253.13:7.C.3](#), [22.1-276.01](#), [22.1-277](#), [22.1-277.07](#); [22.1-277.08](#); [22.1-279.6.B](#), Section [8VAC20-132-200.A and B](#), [8VAC20-81-160](#); [Individuals with Disabilities Education Act](#), [Section 504 of the](#)

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[Rehabilitation Act of 1973](#), [Americans with Disabilities Act](#)

Cross Refs.: [Policy 8215](#), In-School Disciplinary Measures; [Policy 8225](#), Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program; [Policy 8350](#), Student Activities; [Regulation 8220.1](#), Implementing Student Disciplinary Sanctions; [Regulation 8220.2](#), Expulsion by School Board; [Regulation 8220.3](#), Disciplinary Procedures for Students with Disabilities; VDOE Superintendent's Memo #291-18